

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/24/2026 TIME: 9:00 A.M. and 9:01 A.M.

Line 2	24CV442837	Pushpalatha Subbarao vs Sutter Health et al	MOTION TO BE RELIEVED AS COUNSEL Plaintiff's counsel Gregory C. Cattermole, Esq. moves to be Relieved as Counsel for Plaintiff Pushpalatha Subbarao, pursuant to Code of Civil Procedure Section 284(2). The court further notes counsel had appeared on July 10, 2026 (Judge Franco presiding) and the case was continued to January 22, 2027 for Dismissal after Settlement. Counsel are ordered to appear at the July 24, 2026 hearing to clarify whether the Motion to be Relieved as Counsel is still requested or vacated.

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Calendar Line 1**Case Name:** *Brandon Flora v Bass Pro Outdoor World, LLC***Case No.** 19CV359049Defendant Bass Pro Outdoor World, LLC's Motion to Dismiss for Failure to Bring Action to Trial Within Five Years (CCP §§ 583.310, 583.360)

Code of Civil Procedure section 583.310 requires an action to be brought to trial within five years after commencement of the action. Dismissal is mandatory unless the plaintiff establishes that sufficient time is excluded under Code of Civil Procedure section 583.340. (§ 583.360.) Plaintiff bears the burden of establishing that bringing the action to trial was impossible, impracticable, or futile within the meaning of section 583.340, subdivision (c). (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The parties agree that, after application of Judicial Council Emergency Rule 10, the operative deadline to bring this action to trial was May 26, 2025. The dispute is whether additional time should be excluded pursuant to section 583.340(c).

The Court recognizes that Plaintiff's prosecution of this action was not exemplary. Plaintiff did not aggressively pursue affirmative discovery, nor did Plaintiff obtain a trial date before expiration of the statutory period. These facts weigh in favor of dismissal. However, the inquiry is not limited to whether Plaintiff could have prosecuted the case more expeditiously. Rather, the Court must consider "all the circumstances in the individual case, including the acts and conduct of the parties," with the critical inquiry being whether Plaintiff exercised reasonable diligence under the circumstances. (*Gaines v. Fidelity National Title Ins. Co.* (2016) 62 Cal.4th 1081, 1100.)

Considering the totality of the circumstances, the Court concludes Plaintiff has met that burden.

The record reflects that Plaintiff actively participated in the litigation by responding to written discovery, appearing for deposition, submitting to an independent medical examination, participating in ADR efforts, and appearing at case management proceedings. Although Plaintiff did not serve significant affirmative discovery until later in the litigation, the record does not establish that Plaintiff abandoned or failed to prosecute the action altogether.

The Court further finds that Plaintiff has demonstrated periods during which bringing the matter to trial was impracticable within the meaning of section 583.340(c). Counsel submitted evidence of extraordinary circumstances, including serious family medical emergencies, a premature birth, a federally declared natural disaster, and repeated criminal trial obligations entitled to statutory priority. The Court finds these circumstances materially distinguish this case from ordinary scheduling conflicts and constitute circumstances beyond Plaintiff's reasonable control.

The Court also considers Defendant's conduct. The record reflects Defendant failed to appear at multiple scheduled court proceedings over several years, resulting in the Court issuing an Order to Show Cause regarding Defendant's failure to appear. Defendant also identified